

Member ID: _____

Time: _____

Rank: _____



LEGAL OFFICE PROCEDURES (245) **NATIONAL 2023**

Concept Knowledge

40 @ 2 points each _____ (80 points)

Production

Job 1: Affidavit _____ (100 points)

Job 2: Power of Attorney _____ (100 points)

TOTAL POINTS _____ (280 points)

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
2. Electronic devices will be monitored according to ACT standards.

EXAM GUIDELINES:

1. Ensure this test booklet contains Jobs 1-2.
2. Key all jobs according to the instructions given.
3. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the Style & Reference Manual.
4. Your name or initials should not appear on any work you submit. Use your Member ID in any occasion you would normally key your reference initials.
5. In the lower right hand corner of ALL work submitted (unless otherwise specified), key your Member ID and job number.
6. If you complete the event before the end of the time allotted, notify the proctor. Time may be considered a factor in determining a winner when there is a tie score.

PART ONE Instructions: Concept Knowledge

Open Google Chrome and navigate to compete.bpa.org.

1. Click on the Secondary Division Competitions button.
2. Enter your BPA Member ID (8-digits) and Password to access your test questions.
3. Answer all questions and submit your test.
4. Move on to Part Two.

PART TWO Instructions: Production

Once you have completed all four jobs listed below, upload all competition materials (including project files, etc.) to the National BPA Pre-submit System at presubmit.bpa.org.

LOP-Job1-MemberID.pdf

LOP-Job2-MemberID.pdf

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

Directions: Select the answer that *best* answers the question or statement.

1. Marcy's attorney represents Juan Rodriguez, who died before he signed his last will and testament. In legal terms, Mr. Rodriguez has died _____.
 - A. unrepresented
 - B. a ward of the state
 - C. intestate
 - D. without right of succession
2. Three types of legally recognized partnerships are _____.
 - A. general partnership, limited liability partnership, and corporate partnership
 - B. limited partnership, limited liability partnership, and general partnership
 - C. professional partnership, general partnership, and limited-term partnership
 - D. general partnership, limited-term partnership, and corporate partnership
3. Under the law, when an injury or wrongdoing has been committed against a person or entity, it is referred to as a _____.
 - A. tort
 - B. transaction
 - C. complaint
 - D. litigation
4. Sometimes a judge will voluntarily remove himself or herself from hearing a case. This action is referred to as _____.
 - A. case dismissal
 - B. upending
 - C. recusing
 - D. remittitur
5. Product liability is an area of law that deals with which of the following?
 - A. the U.S. government's oversight of the manufacturing industry
 - B. lawsuits that encourage manufacturers to create certain products
 - C. a manufacturer's responsibility for products that cause injury
 - D. the duty of consumers to return recalled items
6. Which of the following statements regarding criminal law is *true*?
 - A. The plaintiff in a criminal action is the government.
 - B. Criminal law is the same in every state.
 - C. Federal statutes govern criminal law.
 - D. An accused person has the right to a grand jury trial.
7. A crime such as larceny, which involved a dishonest act, is sometimes labeled as _____.
 - A. recidivism
 - B. ground swell
 - C. insanity
 - D. moral turpitude

8. When an attorney is asked to sue a person he or she previously represented, although in a different matter, it usually creates a conflict of interest.
 - A. True
 - B. False
9. An attestation clause is written to provide a legal way to end a contract.
 - A. True
 - B. False
10. A decree that concludes a litigated matter by listing the outcomes and responsibilities of the parties is a(n) _____.
 - A. *voir dire*
 - B. answer
 - C. summons
 - D. judgment
11. _____ is a document that must be served in person to a defendant to inform him or her that a lawsuit has been filed.
 - A. *voir dire*
 - B. answer
 - C. summons
 - D. judgment
12. In open court a juror is asked about his or her competence to serve as a juror or his/her interest in the case at bar, is known as _____.
 - A. *voir dire*
 - B. answer
 - C. summons
 - D. judgment
13. _____ is an ending of a lawsuit through a decision of a judge.
 - A. authority
 - B. directed verdict
 - C. dissolution
 - D. consideration
14. A(n)_____ is a document that orders a certain action to not occur or to cease from occurring.
 - A. trust
 - B. living will
 - C. deed
 - D. injunction

15. Which of the following best describes a detailed statement given to a seller and a purchaser showing all moneys received, expended, and due by either party of a real estate transaction?
- A. closing statement
 - B. abstract of title
 - C. deed
 - D. deed of trust
16. Which of the following is a formal written statement by a party to a lawsuit that answers each question propounded by the other party?
- A. official statement
 - B. complaint
 - C. appellate action
 - D. answers to interrogatories
17. A command to appear at a certain time and place to give testimony and to bring items specified therein is referred to as a _____.
- A. subpoena
 - B. summary judgment
 - C. subpoena *duces tecum*
 - D. demand
18. _____ describes the conversion by sale of all of the debtor's nonexempt property.
- A. Dismissal
 - B. Discharge
 - C. Liquidation
 - D. Claim
19. A person or institution who manages money or property for another and who must exercise a standard of care imposed by law is referred to as a(n) _____.
- A. conservator
 - B. guardian *ad litem*
 - C. heir
 - D. devise
20. What is a non-dischargeable debt in bankruptcy?
- A. a debtor that does not work
 - B. a debt that cannot be erased
 - C. a debt that can be erased
 - D. a debt that has already been repaid
21. What is the residuary estate of a will?
- A. items that are not wanted
 - B. jewelry
 - C. untitled land
 - D. anything left that is not specifically bequeathed

22. The clause in a will that revokes all former wills and codicils made by the testator is referred to as a _____ clause.
- A. residual
 - B. self-proved
 - C. testimonium
 - D. revocation
23. Which of the following is *not* a pleading?
- A. Notice of Hearing
 - B. Request for Admissions
 - C. E-mails pertinent to the case
 - D. Memorandum of Costs
24. What does it mean if a pleading is *res judicata*?
- A. It has been dismissed.
 - B. It has been judicially acted upon.
 - C. It was not timely filed.
 - D. It was stricken from the record.
25. An agreement whereby the debtor agrees to continue payment to the creditor in bankruptcy is referred to as a(n) _____.
- A. reaffirmation agreement
 - B. involuntary petition
 - C. liquidation
 - D. wage earner's plan
26. Which of the following statements describes the legal principle *res judicata*?
- A. The trial has concluded and the verdict is entered.
 - B. Once a judicial decision is made, the matter cannot be brought to trial again.
 - C. A defendant in a criminal matter must be assured of a speedy trial.
 - D. To file for review of a case in a higher court, the appellant must provide the entire case from the lower court.
27. Which of the following best describes the differences between fraud and misrepresentation?
- A. Fraud is considered to be only between individuals, whereas misrepresentation is considered to be between a company or corporation and an individual.
 - B. Fraud is a criminal offense and a misrepresentation is a civil offense.
 - C. Fraud involves a false statement with intent to deceive, whereas a misrepresentation involves a false statement with no intent to deceive.
 - D. Fraud can either be spoken or written, whereas a misrepresentation is always written.

28. Affirmative defenses to a complaint include which of the following
- A. Assumption of risk
 - B. Comparative negligence
 - C. Statute of limitations
 - D. All of these are correct
29. The first step in a legal action is usually a demand letter that explains the claimant's injuries and settlement demands and threatens to file suit if the demands are not met.
- A. True
 - B. False
30. The fact stands on its own, in and of itself is _____.
- A. *Amicus curiae*
 - B. *Certiorari*
 - C. *Ipsa facto*
 - D. *Per stirpes*
31. _____ are statute publications that include not only the law but also a history of the law or cases dealing with that statute.
- A. Annotated codes
 - B. Primary law
 - C. Regulations
 - D. Secondary sources
32. A notary public may be held personally liable for incorrectly carrying out the duties of the notary public office.
- A. True
 - B. False
33. A plea where the defendant does not contest the charge is _____.
- A. *Americus curiae*
 - B. *Ex parte*
 - C. *Nolo contendere*
 - D. *Pro bono*
34. Filing the following names, which name should be filed last?
- A. Victoria Anderson
 - B. Vickie Andersen
 - C. V. L. Anderson
 - D. Vickie Anderson

35. A legal document entered by the court that can be used to collect money from a party to the lawsuit is a(n) _____.
A. interrogatories
B. judgment
C. motion
D. stipulation
36. A voluntary brief to advise the court written by an entity who is not a party to the action best describes _____.
A. *ex parte*
B. injunction
C. *pro bono*
D. *amicus curiae*
37. The legal doctrine that requires courts to follow the precedents set by earlier courts in similar actions with similar facts is _____.
A. jurisdiction *in rem*
B. procedural law
C. a standing
D. *stare decisis*
38. Negligence is measured by percentage, and under the _____ rule, damages are often reduced in proportion to the amount of negligence attributed to the person who is seeking those damages.
A. arbitration
B. comparative negligence
C. counterclaim
D. rebuttal
39. If a motion for _____ is successful, the defendant has proven that the plaintiff has failed to present proper evidence, thereby resulting in the judge deciding the outcome without having the jury considering the case.
A. cause of action
B. contributory negligence
C. directed verdict
D. *res judicata*
40. A motion is a request to the court signed by one attorney, and a stipulation is a request to the court signed by two or more of the attorneys or an agreement signed by two or more attorneys.
A. True
B. False

PRODUCTION

You work for Young & Associates Law Firm.

Job 1: Affidavit

Your first task for today is to prepare an affidavit for Huynh Truong's signature which will be filed in Dawson County, Nebraska. Be sure and follow the *Style & Reference Manual*. Make sure to include the notary block.

I, Huynh Truong, upon oath, state as follows:

1. On December 22, 2022, I was driving my 2021 Mercedes four-door sedan in Kearney, Nebraska.
2. After stopping at the stop light at the corner of Lake and Emerson, I proceeded forward once the light turned green.
3. When I was in the middle of the intersection, I could see a vehicle coming from my right at a speed so fast that I knew the vehicle would not be able to stop.
4. I tried to accelerate to get out of the way of the vehicle, but was unable to move enough and the vehicle hit my rear right bumper, spinning me around and causing my vehicle to come to rest on the right curb facing backward.
5. No other vehicles were involved other than mine and the vehicle belonging to the defendant.
6. My vehicle was damaged in the amount of \$7,450.00 according to an estimate received from the Mercedes dealer on Grand Avenue in Kearney, Nebraska, copy of which is attached to this affidavit as Exhibit 1.
7. I experienced some neck pain that night and went to the doctor the next morning to find out I had whiplash.
8. I saw the doctor a total of three times and received treatment to help the problem. Those visits totaled \$995.50, and copies of the bills are attached hereto as Exhibit 2.
9. I may have neck problems in the future, as explained in a letter from my doctor dated January 24, 2023, copy of which is attached as Exhibit 3.

Job 2: Power of Attorney

Jesse Young, one of the attorneys you work for, has asked you to prepare the following Durable Power of Attorney for his client, Rhonda Martens. Follow the *Style & Reference Manual* and make sure to correct any misspellings, capitalization, grammar or any other errors you find. Be sure to add the signature blocks for the notary, two witnesses, and grantor.

Title: Durable Power of Attorney

Grantor: Rhonda Martens

Attorney-in-fact: Jesse Young

Content: That Rhonda Martens, Grantor, has made, constituted, and appointed, and by these presents does make, constitute, and appoint, Jesse Young her true and lawful attorney-in-fact for her and in her name, place and stead, for the sole and singular purpose of the following:

executing any and all documents necessary or required to conduct financial transactions in Grantor's place including but not limited to, bill payment, real estate transactions, corporate transactions, and all other personal financial transactions, including those having to do with grantor's son, Nathan Martens. Further, Jesse Young is empowered to make, do, and transact any and all other financial business as may be necessary on behalf of Grantor,

giving and granting unto Jesse Young said attorney-in-fact, full power and authority to do and perform all and every act and thing whatsoever requisite and necessary.

In witness wherefore, I have hereunto set my hand and seal this _____ day of _____ (1 ½" line), 2023.